

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Runston G. Maino
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112-2724

Re: Martin, Matthew Francis
CDC No.: P09030
Case No.: SCN129999
Date of Sentence: 02/04/2002

Dear Honorable Runston G. Maino:

The purpose of this letter is to provide the court with authority to resentence Matthew Francis Martin pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Martin was sentenced in 2002, and was convicted of section 245, subdivision (b), ASLT W/SEMIAUTO FIREARM. The trial court sentenced inmate Martin on 02/04/2002. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Martin's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Martin's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Peter C. Deddeh, San Diego County Presiding Judge
San Diego District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

127988

7B

P09030

CR-290

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN DIEGO ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT NORTH COUNTY					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: MARTIN, MATTHEW FRANCIS AKA: MCALLISTER, MATTHEW FRANCIS CII#: 10142682 BOOKING #: 1127988				DOB: 07-17-77 SDCT	
				SCN129999 -A SCN129050 -B -C -D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT				☐ NOT PRESENT ☐ AMENDED ABSTRACT	
DATE OF HEARING 02-04-02		DEPT. NO. 23		JUDGE RUNSTON G. MAINO	
CLERK S. RINGEL		REPORTER B. SCHULTZ		PROBATION NO. OR PROBATION OFFICER A800310	
COUNSEL FOR PEOPLE R. GROSSMAN				COUNSEL FOR DEFENDANT PRO PER W/K. ELLIOTT, ADVISING	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (under 10 years)	ESL STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
1A	PC	245(B)	ASLT W/SEMI-AUTO FIREARM	01	04-15-01			X	U							18	0
1B	PC	664/187(A)	ATTEMPT MURDER	01	11-15-01			X	M		X					4	7
2B	PC	664/187(A)	ATTEMPT MURDER	01	11-15-01			X	M		X					4	7
3B	PC	664/187(A)	ATTEMPT MURDER	01	11-15-01			X	M		X					4	7
4B	PC	664/187(A)	ATTEMPT MURDER	01	11-15-01			X	M		X					4	7
9B	PC	12021(A)(1)	FELON POSS FIREARM	01	11-15-01			X	M		X						8

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1A	PC12022.5(A)(1)	10	PC12022.7(A)	3	PC186.22(B)(1)	10			23 0
1B	PC12022.53C	6	7 MONTHS						6 7
2B	PC12022.53C	6	7 MONTHS						6 7
3B	PC12022.53C	6	7 MONTHS						6 7
4B	PC12022.53C	6	7 MONTHS						6 7

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
PC667.5(B)	1							1 0

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 87 4

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

(Continued on reverse)

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **MATTHEW**

SCN129999

-A

SCN129050

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$* per PC 1202.4(b) forthwith per PC 2085.5.
b. RESTITUTION FINE of: \$** per PC 1202.45 suspended unless parole is revoked.
c. RESTITUTION of: \$_____ per PC 1202.4(f) to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 11, below.)
(1) ☐ Amount to be determined.
(2) ☐ Interest rate of: ____% (not to exceed 10% per PC 1202.4(f)(3)(F)).
d. ☐ LAB FEE of: \$_____ for counts: _____ per H&SC 11372.5(a).
e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a).
f. ☐ FINE of \$_____ per PC 1202.5.

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
b. ☐ DNA pursuant to ☐ PC 290.2 ☐ other (specify):

11. Other orders (specify):

SCN1299999

* RESTITUTION FINE \$200 PER PC1202.4(B) FORTHWITH PER PC2085.5.

**RESTITUTION FINE \$200 PER PC1202.45 SUSPENDED UNLESS PAROLE IS REVOKED.

SCN129050

*RSTITUTION FINE \$200 PER PC1202.4(B) FORTHWITH PER PC2085.5.

**RESTITUTION FINE \$200 PER PC1202.45 SUSPENDED UNLESS PAROLE IS REVOKED.

TERM DOUBLED PER PC667(B)-(I)

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
SCN129999 -A	325	283	43 ☐ 4019 ☒ 2933.1
SCN129050 -B	0	0	0 ☐ 4019 ☐ 2933.1
-C			☐ 4019 ☐ 2933.1
-D			☐ 4019 ☐ 2933.1
DATE SENTENCE PRONOUNCED: 02-04-02	SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC		

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE S. RINGEL	DATE 02-04-02
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